

The Highways Administration Rules, 2004

Source: <https://indiankanoon.org/doc/148742665/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Highways Administration Rules, 2004

UNION OF INDIA

India

The Highways Administration Rules, 2004

Rule THE-HIGHWAYS-ADMINISTRATION-RULES-2004 of 2004

Published on 20 September 2004

Commenced on 20 September 2004

[This is the version of this document from 20 September 2004.]

[Note: The original publication document is not available and this content could not be verified.]

The Highways Administration Rules, 2004

Published vide Notification G.S.R. 700(E), dated 20.9.2004, published in the Gazette of India, Extra Part 2, Section 3(i), dated 26.9.2004.

217.

G.S.R. 700(E), Dated 20.10.2004. - Whereas , the draft of certain rules called the Highways Administration Rules, 2003, which the Central Government proposes to make, in exercise of the powers conferred by sub-section(1) read with clauses (a), (g), (h), (i),(m), (n), (o), (p), (q), (r), (s),(t), (u), (v) and (w) of sub-section (2) of section50 of the Control of National Highways (Land and Traffic) Act, 2002 (13 of2003) was published in the Gazette of India, Extraordinary, Part II, section 3,sub-section (i), dated the 26th August, 2003with the notification of Government of India in the Ministry of Road Transport and Highways number G.S.R. 407, dated the 26th August, 2003, inviting objections and suggestions from all persons likely to be affected thereby before the expiry of thirty days from the date on which copies of the said

notification, as published in the Gazette of India, are made available to the public;

And whereas ,copies of the said notification were made available to the public on 26th August, 2003 ;

And whereas, no objections or suggestions have been received from any person with respect to such draft rules within the time period specified in the said notification;

Now,therefore ,in exercise of the powers conferred by sub-section (1) read with clauses (a),(g), (h), (i) and (m) to(w) of sub-section (2) of section 50 of the Control of National Highways(Land and Traffic) Act, 2002 (

13 of 2003

) and section 22 of the General Clauses Act, 1897 (10 of 1897), the Central Government hereby makes the following rules, namely:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules will be called The Highways Administration Rules , 2004.

(2)

They shall come into force on the [date]

[Brought into force on 27.1.2005.]

on which the Act shall come into force.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

Act means the Control of National Highways(Land and Traffic) Act, 2002 (

13 of 2003

);

(b)

section means a section of the Act;

(c)

Officer, in respect of a Highway Administration, means the Officer referred to in clause (i)or clause (ii) of rule 3, as the case may be;

(d)

Senior Officer, in respect of a Highway Administration, means the Officer designated as Senior Officer under clause (ii)of rule 3;

(e)

permit means a permit issued under sub-section (2) of section 24 for granting permission under that sub-section;

(f)

lease means the lease granted under section 25;

(g)

license , for the purposes of rules 9 and 10, means the license granted under section 25;

(h)

Schedule means a Schedule annexed to These rules;

(i)

words and expressions used in these rules which are not defined in these rules but are defined in the Act shall have the respective meanings assigned to them in the Act.

Chapter II

Exercise Of Powers And Functions By The Highway Administrations And Maintenance Of Records

3.

Exercise of powers and functions by Highway Administrations.

- Subject to The provisions of the Act and the conditions or limitations imposed by the Central Government under the proviso to sub-section (1) of section 3,-

(i)

where a Highway Administration consists of only one Officer, then, such Officer shall exercise the powers and discharge the functions of the Highway Administration under the Act and these rules by himself or such powers shall be exercised and functions shall be discharged by the subordinate officers under his supervision to the extent as is authorized by such Officer to the subordinate Officers from time to time;

(ii)

where a Highway Administration consists of more than one Officer, then, the Central Government shall designate one of them as the Senior Officer who shall assign to each of such Officers (including himself), the length of Highway within the jurisdiction of such Highways and the Officer to whom such length of Highways is so assigned shall exercise the powers and discharge the functions of the Highway Administration under the Act and these rules in respect of such length of Highway in the manner as specified in clause (i) for exercising of powers and discharging of functions of Highway Administrations consisting of one Officer:

Provided that the Senior Officer so designated shall have the general supervision over the exercising of powers and discharging of functions of the Highway Administration by the other Officers.

4.

Maintenance of land records.

(1)

There shall be maintained at the head office of every Highway Administration a register to be called the Highway Land Register in the form specified in the Schedule I in which the particulars of the land situated within the jurisdiction of the Highway Administration of which the Central Government is the owner under section 23 shall be entered.

(2)

Every page of the Highway Land Register shall be consecutively numbered and on the first page of the Register, the Officer or the Senior Officer, as the case may be, shall authenticate the number of pages which the Register contains and he shall, from time to time, inspect the Register and ensure that the entries made therein are correct.

(3)

[In addition to the Highway Land Register specified in sub-rule (1), every Highway Administration shall maintain a record containing all the particulars of the land situated within the jurisdiction of the Highway Administration of which the Central Government is the owner, in the form specified in the Schedule I in electronic mode to be called as the Electronic Highway Land Register.

(4)

Every page of the Electronic Highway Land Register shall be consecutively numbered and on the first page of the said Register, the Officer or the Senior Officer, as the case may be, shall authenticate the number of pages which the Register contains by appending his digital signature and he shall, from time to time, inspect the Register and ensure that the entries made therein are true and correct.]

[Inserted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

5.

Claim for correction of records.

(1)

Any person claiming against the ownership of the Central Government referred to in sub-section (1) of section 23 and desirous of getting a correction carried out in the Highway Land Register, shall make written complaint to the concerned Officer or the Senior Officer, as the case may be, and prove his claim before him and such Officer or Senior Officer, as the case may be, may after considering the evidence produced by such person order to correct the concerned entry in the Register or reject the claim.

(2)

[Where the Officer or the Senior Officer, as the case may be, orders to correct any entry in the Highway Land Register, such correction shall be made in that Register by the concerned official of the Highway Administration and it shall also be signed by such official and countersigned in red ink by the Officer or the Senior Officer, as the case may be, within 7 days from the date of the order.]

[Substituted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

Chapter III

Conditions,Rent, Other Charges, Etc.

6.

Conditions subject to which permit may be issued.

- A permit shall contain anyone or more of the following conditions which the Highway Administration or any officer authorized under sub-section (1) of section 24, as the case may be, while granting a permission under sub-section (2) of the said section deems fit having regard to the safety and convenience of traffic and nature of the permission, namely:-

(i)

that the person to whom the permission is granted shall not do or cause to be done any act in pursuance of the permission which may cause damage to highway and highway land or inconvenience to the traffic on the highway;

(ii)

that such person shall not do or cause to be done any act in pursuance of the permission which may cause any damage to the Highway land which cannot be restored immediately on the expiry of the permission granted;

(iii)

that such person shall not do or cause to be done any act on the Highway occupied in pursuance of the permission which may cause air pollution or water pollution or noise pollution on the Highway:

Provided that such extent of reasonable pollution which the Central Government may, from time to time by notification in the Official Gazette, specify, shall be permissible under this clause;

(iv)

[that such person shall not make or cause to be made any structure other than a movable structure as mentioned in clauses (i) and (ii) of sub-section (2) of section 24;]

[Substituted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

(v)

that any breach of the conditions so imposed shall be a ground to cancel the permit.

7.

[Rent and other charges for issuing permit.

[Substituted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

(1)

The permit shall be issued to a person on payment of rent to the Highway Administration at the rate specified by the Central Government from time to time.

(2)

Where the permission granted by issuing the permit is renewed, the renewal of the permission shall be made on payment of rent at the rate specified by the Central Government from time to time.]

7. Rent and other charges for issuing permit.- (1) The permit shall be issued to a person on payment of rent to the Highway Administration at the rate as specified below:-

{

Rate of rent per month in rupees =

Present cost of land on Highway occupied in pursuance of permission under the permit

5 x 12

(2)

Where the permission granted by issuing the permit is renewed, the renewal of the permission shall be made on payment of rent at the rate specified in sub-rule (1) and the additional charge amounting to rupees one thousand where the land occupied under the permit is up to twenty-five square metres and where it exceeds twenty-five square metres such additional charge shall increase further at the rate of one thousand rupees per twenty-five square metres or part thereof.

}]

8.

Form of permit.

- Every permit shall be issued in the Form specified in Schedule II.

9.

[Condition subject to which a lease or license of Highway may be granted under section 25.]

[Substituted by Notification No. G.S.R. 634 (E), dated 28.6.2016 (w.e.f. 26.9.2004).]

- A lease or license of Highway land granted to a person for temporary use shall contain the following conditions,

namely:-

- (i) such conditions which are agreed to by and between the Highway Administration or the officer authorized by such Administration in this behalf, and such person, having regard to the safety and convenience of traffic; and
- (ii) any one or more of the following, which the Highway Administration or the officer authorized by such Administration deems fit, having regard to the safety and convenience of traffic, to impose-
 - (a) that such person shall not do or cause to be done any act on such Highway land which may cause damage or inconvenience to the traffic to the Highway;
 - (b) that person shall not do or cause to be done any act on such Highway land which may cause any damage to the Highway land which cannot be restored on the termination of the lease or license, as the case may be;
 - (c) that such person shall not do or cause to be done any act on such Highway land which may cause air pollution or water pollution on the Highway;
 - (d) that such person shall not make or cause to be made on such Highway land any structure of such nature which cannot be removed easily on the termination of the lease or license, as the case may be;
 - (e) that on any breach of the conditions imposed, the Highway Administration or the officer authorized by such Administration in this behalf, may terminate the lease or license, as the case may be;
 - (f) that such lease or license, as the case may be, shall be valid for a period determined by the Highway Administration at the time of lease or license which shall not exceed five years on the expiry of lease.

10.

Rent or other charges for granting lease or license.

(1)

The lease or license of Highway land shall be granted on payment of rent by the person to whom the lease or license, as the case may be, is given to the Highway Administration at the rate as specified below:-

Rate of rent per month in rupees

=

Present cost of such Highway land

5 x 12

(2)

Where the lease of Highway land is renewed, each renewal of the lease shall be made on payment of rent specified in sub-rule (1) and additional charge amounting to rupees five thousand where such Highway land is up to twenty-five square metres and where it exceeds twenty-five square metres such additional charge shall increase further at the rate of five thousand rupees per twenty-five square metres or part thereof.

11.

Form of notice.

- Every notice to be issued under sub-section (2) of section 26 shall be in the form as specified in Schedule III.

12.

The cost for making feasible construction, etc.

- The cost for making construction including alteration of any construction feasible under sub-section (8) of section 26 shall be such as may be determined from time to time by the Highway Administration, having regard to the cost of material to be utilized for such construction or alteration of construction, the rate of labor charges in the concerned area and other relevant factors.

13.

Form of bill.

(1)

Every bill to be served under sub-section (2) of section 27 shall be in the form as specified in Schedule IV.

(2)

The bill referred to in sub-rule (1) shall be accompanied by a certificate issued by the Highway Administration or the officer authorized by such Administration in this behalf and also with a brief description of unauthorized occupation, construction including alteration of construction in respect of any unauthorized construction or repairing of any damage, as the case may be, to which the bill belongs.

14.

Application for specific permission to access to a Highway.

- [The application for obtaining specific permission for access to any Highway under sub-section (2) of section 29 shall be in such Form as is specified in Schedule V and shall be accompanied by a fee of rupees five hundred drawn in favor of the concerned Highway Administration, who shall dispose of such application within 30 days from the date of its receipt by him.]

[Substituted by Notification No. G.S.R. 634 (E), dated 28.6.2016 (w.e.f. 26.9.2004).]

15.

Terms and conditions for specific permission to access to a Highway.

- The Highway Administration may, while giving a permission under sub-section (2) of section 29, impose any one or more of the following terms and conditions, namely:-

(i)

[that the specific permission shall be for the period of time and purposes as specified by the Highway Administration in the license issued under sub-section (3) of section 29;]

[Substituted by Notification No. G.S.R. 634 (E), dated 28.6.2016 (w.e.f. 26.9.2004).]

(ii)

that the specific permission shall be limited for the access to such length of a Highway as may be specified in the said license;

(iii)

that the person to whom the specific permission is given shall not do or cause to be done in pursuance of the specific permission any act which may cause any damage to Highway;

(iv)

that such person shall not do or cause to be done, in pursuance of the specific permission, any act by which safety and convenience of traffic on the Highway shall be disturbed;

(v)

that such person shall while utilizing permission shall observe such guidelines relating to safety and convenience of traffic on the Highway, hygiene, prevention of nuisance and pollution on the Highway as may be specified by the Highway Administration in the said license.

16.

Form of license, period of validity and manner of renewal of license.

(1)

The license given under sub-section (3) of section 29 shall be in the form as specified in the Schedule VI.

(2)

The specific permission under the license referred to in sub-rule (1) shall be valid up to a period specified in the license which shall not exceed six months at a time and the person in whose favor such permission is given may if he desires to obtain an extension of time, make an application within one month of the expiry of the permission so given to the Highway Administration and the Highway Administration may, having regard to the guidelines and instructions issued under sub-section (2) of section 28 and the notification under sub-section (3) of that section either renew the permission under the license or reject the same.

[Provided that where an application has been made for renewal of the permission, the Highway Administration, shall take a decision on such application before the date of expiry of the permission.]

[Inserted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

(3)

Where the permission under license is renewed under sub-rule (2), the Highway Administration shall make the entry for such renewal on the back of the license and specify the time for which the renewal is made which shall not exceed six

months at a time and endorse the same with signature and seal and where the renewal is rejected, the Highway Administration shall record the reason in writing for such rejection and communicate the same to the person concerned.

Chapter IV

LADEN WEIGHT, SAFETY CONTROL AND MANNER OF HANDING OVER THE VEHICLE, ETC.

17.

Limit of laden weight.

- The Highway Administration may, keeping in view the conditions of the surface of a Highway determine with the previous approval of the Central Government, the limit of laden weight in respect of the Highway or any part thereof, or any bridge, culvert or causeway built on or across the Highway, as the case may be, from time to time, which shall be the limit of laden weight for the purposes of section 32 and the Highway Administration shall publish such limits of laden weight in a local newspaper for the information of the concerned persons.

18.

Prohibition or restriction of the plying of vehicle under section 32.

- Where the Highway Administration is satisfied that the surface of a Highway or any part thereof, or any bridge, culvert or causeway built on or across the Highway is not designed to carry vehicle of which the laden weight exceeds the limit of laden weight as determined under rule 17, it may, by public notice of such fact in the local newspapers and after placing signboards containing such fact at suitable distances nearby such Highway or any part thereof or any bridge, culvert or causeway built on or across the Highway, as the case may be, for the information of the traffic concerned, prohibit or restrict the plying of such vehicles on or over such Highway or any part thereof or such bridge, culvert or causeway built on or across the Highway, as the case may be, and in case of doubt, the Highway Administration may remove the additional laden weight in excess of the permissible limit of the laden weight of any vehicle to implement the provisions of this rule for directing such plying of the vehicle.

19.

Traffic signs to be placed or erected under section 35.

- The Highway Administration shall, for the purposes of section 35, cause one or more of the traffic signs specified in the First Schedule to the Motor Vehicles Act, 1988 (59 of 1988

) suitable and sufficient to serve the purpose, to be placed or erected at suitable places for the convenience of the traffic: Provided that in case the Highway Administration considers that any modification in any such sign is required to serve a particular purpose under section 35 in a more useful manner, it may place or erect such modified signs after the approval of the Central Government for the purpose.

20.

Safety control under sub-section (1) of section 37.

(1)

No person in charge of, or in possession of, any vehicle shall allow such vehicle

(i)

to proceed on a Highway unless

(a)

such vehicle is driven within such limit of speed as is applicable for the driving of such vehicle in any public place under section 112 of the Motor Vehicles Act, 1988 (

59 of 1988

);

(b)

such vehicle is within the limits of weight within the meaning of sub-section (2) of section 113 of the Motor Vehicles Act, 1988 (

59 of 1988

) for its driving in any public place; and

(c)

such vehicle, complies with the rules made by the Central Government under section 110 of the Motor Vehicles Act, 1988 (

59 of 1988

) relating to brakes and steering gear, signaling appliances, lamps and reflectors, speed governors, emission of smokes, visible vapor, sparks, grid or oil, reduction of noise - emitted by, or caused by, vehicles, auto dipper, provision for transportation of goods of dangerous or hazardous nature to human life and standards for emission or air pollutants; or

(ii)

to stand on a Highway unless

(a)

such vehicle stands in such circumstances which has not to cause or likely to cause danger, obstruction or undue inconvenience to other users of the Highway or to the passengers thereon;

(b)

such vehicle is under the close supervision of its driver or any other person assigned its supervision and is not left unattended by such driver or person unattended for two hours or more;

(c)

such vehicle is parked in a place legally allowed or allowed by the Highway Administration for such parking;

(d)

such vehicle is wrecked, burnt or impartially dismantled condition creating a traffic hazard; and

(e)

such vehicle is not creating any obstruction in a smooth and easy traffic movement on the Highway.

(2)

No person in charge of, or in possession of, any animal shall allow such animal

(i)

to proceed on a Highway unless

(a)

such animal is attended by a person so efficiently to avoid any danger or fear to the traffic on the Highway;

(b)

such animal so attended by a person so as not to create any uneasiness-to the traffic on the Highway; and

(c)

such animal is so attended by a person so as not to allow such animal to damage the Highway;

(ii)

to stand on a Highway

(a)

at a place on the Highway other than a place which is specifically allocated by the Highway Administration for such purposes;

(b)

in a condition unattended by a person;

(c)

in a condition to allow the animal to cause any damage or fear to the traffic; and Highway.

(d)

in a condition to allow the animal to pollute or damage the

21.

The manner of handing over the vehicle or animal to the owner, etc.

(1)

Where a vehicle or animal has been taken into possession by the Highway Administration under sub-section (2) of section 37, a person claiming to be the owner of such vehicle or animal, as the case may be, may make an application to the Highway Administration stating therein that he is the owner of such vehicle or animal, as the case may be, and such vehicle or animal may be handed over to him by the Highway Administration on payment of expenses incurred by the Highway Administration in removal of the vehicle or animal under sub-section (2) of section 37.

(2)

[The person making an application under sub-rule (1) shall,-

(a)

for release of the vehicle, produce certificate of registration, tax receipt or any other documentary evidence which proves his ownership of such vehicle;

(b)

for release of the animal, give its detailed description or produce any other oral or documentary evidence for proving his ownership of such animal, to the satisfaction of the Highway Administration.]

(3)

Where the Highway Administration after considering the evidence under sub-rule (2), is satisfied that such person is the owner of such vehicle or animal, as the case may be, it shall assess the expenses incurred in the removal of such vehicle or animal under sub-section (2) of section 37 and after payment of the expenses so assessed to the Highway Administration by such person, the Highway Administration shall hand over such vehicle or animal, as the case may be, to such person.

(4)

If a vehicle remains unclaimed for seven days, a report in respect of such vehicle shall be made to the concerned police station.

(5)

[If any animal remains unclaimed for 10 days from the date on which the animal has been taken into custody,]

[Substituted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

the Highway Administration shall make suitable arrangement for the safe custody and maintenance of such animal till it is disposed of.

[Chapter V

[Inserted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

Form of Application, Fees and Other Charges for Construction]

22.

Form of application under sub-section (2) of section 38.

- Every application under sub-section (2) of section 38 shall be made in the form specified in Schedule VII.

23.

Fees and other charges under sub-section (3) of section 38.

(1)

The Highway Administration shall impose fee on the persons to whom the permission is given under sub section (3) of section 38 at the rate specified below, namely:

Per month fees in rupees =

Present cost of land forming part of the Highway occupied or applied for permission to undertake the proposed work.

5 x 12

(2)

Where the land forming part of the Highway, in respect of which the fees imposed under sub-rule (1), is situated in a Municipal area, then, the other charges at the rate of twenty per cent. of the fees imposed under sub-rule (1) shall also be imposed and where such land is situated in the rural area, then, the other charges so imposed shall be ten per cent.

Explanation.-For the purposes of this sub-rule, the expression "Municipal area" has the meaning assigned to it under clause (a) of article 243-P of the Constitution and the expression "rural area" means the area other than a Municipal area.

[Chapter VI

[Inserted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

Miscellaneous]

24.

Summary inquiry under section 43.

(1)

If the Highway Administration or the officer authorized in this behalf by such Administration, desires to make any inquiry for the purposes of the Act, he may make a summary inquiry in the following manner, namely:

(a)

the Highway Authority or the Officer authorized by him, as the case - may be, may visit the place of unauthorized occupation of the highway land, inspect such land and reduce his observations in writing to arrive at a conclusion for appropriate action under the Act;

(b)

the Highway Administration or the Officer authorized by him, as the case may be, thinks necessary, he may record the statement of the concerned village headman, village accountant, village watchman or other village official referred to in section 42 or any other person to arrive at the conclusion that any offense including unauthorized occupation, damage or destruction of a Highway land has been committed or not;

(c)

where the Highway Administration or the Officer authorized by him, as the case may be, records the statement under clause (b), he shall record such statement in duplicate and obtain signature thereon of the concerned village headman, village accountant, village watchman, other village official or any other person, as the case may be, where statement has been so recorded.

(2)

Where on the basis of the inquiry made under sub-rule (1), the Highway Administration or the officer authorized in this behalf by such Administration is satisfied that any action is required to be taken under the Act, the Highway Administration or the person authorized by him, as the case may be, shall take such action without any delay and where the Highway Administration or such officer is satisfied on the basis of such inquiry that any offense involving unauthorized occupation, damage or destruction of the Highway land has been committed, as the case may be, shall without delay inform the officer in charge of the police station concerned, along with the copy of relevant observation reduced in writing under clause (a) or statement recorded under clause (b) of sub-rule (1) of such commission of offense for taking necessary action.

(3)

Every Highway Administration shall send a summary report once in every three months to the Central Government stating therein the brief description of inquiries made under sub-rule (1) within the jurisdiction of such Highway Administration within such period and the actions taken on the basis of such inquiries.

(4)

On receipt of the summary reports under sub-rule (3), the Central Government may issue any general or special orders under the proviso to sub-section (1) of section 3, which such Government thinks fit for proper exercise of powers and discharge of functions by the Highway Administrations under the Act.

25.

Manner of service or presentation of notice or bill.

- Save as otherwise provided in the Act, every notice or bill issued or prepared under section 47 may be served or presented in the following manner, namely:

(a)

such notice or bill may be served on the person concerned or presented to him by a messenger handing over a copy thereof or obtaining: is signature on another copy thereof;

(b)

in case the service or presentation of such, notice or bill is not easily possible under clause (a), then, such notice or bill shall be sent to the person concerned by registered post or speed post at his known-residence and the delivery of such registered post to such person shall be the service on or presentation to him on such notice or bill, as the case may be and in case he refuses to receive such registered post or speed post, the remarks of such refusal by a post office official on the registered post shall be deemed to be the service on, or presentation to, such person of such notice or bill, as the case may be

(c)

in case the service or presentation of such notice or bill is not physically possible under clauses (a) and (b), then, the contents of such notice or bill shall be published in newspaper having circulation in the locality where the person concerned actually or voluntarily resides or carries on business or personally works for gain and such publication shall be deemed to be the service of such notice or bill, as the case may be, on such person or presentation thereof to him.

26.

Interpretation.

- If any question arises relating to the implementation of these rules, the same shall be referred to the Central Government for its decision and the decision of the Central Government shall be implemented.

27.

[Redressal of grievance.

[Inserted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

- The Central Government may issue guidelines to redress the grievances which shall be effective from the date of its issue.

28.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient to do so, it may for reasons to be recorded in writing, relax any of the provisions of these rules.]

[Substituted by Notification No. G.S.R. 634(E), dated 28.6.2016 (w.e.f. 26.9.2004).]

I

[See rule 4(1)]

Highway Land Register

N.H. No.

K. M. No

State/Union territory of

Sl. No.

Name of State/Union territory

Name of District

Name of Tehsil/Sub-Division

Name of Village/Mohalla

Plot No./Khasra No.

Area of the land in acres/hectares

(1)

(2)

(3)

(4)

(5)

(6)

Note.-Information is to be maintained kilometre-wise in this register.

II

(See rule 8)

PERMIT FOR OCCUPATION OF HIGHWAY LAND

[Under sub-section (2) of section 24 of the Control of National Highways (Land and Traffic) Act, 2002]

State/Union territory of

1. Name of the person to whom the permit is issued

2. Father's name

3. Permanent Address

(with telephone No.)

4. Address for communication

(with telephone No.)

5. Area of the Highway in sq./m. to be occupied in pursuance of the permit

6. Location of such area

(including NH. No., its kilometrage and name of State/Union territory)

7. Purpose for which the permission is granted under the permit

8. Period with dates for which the permission

From To.....

is granted under the permit

9. Conditions subject to which permission is granted under the permit

10. Rent paid

.....

Signature and seal of the Officer of

Highway Administration granting the permit

Place

Date

Note.-Entries regarding renewal including the time period for which renewal is made, rent and additional charges paid therefor shall be made and endorsed on the back of this permit with seal by the officer renewing permission.

III

(See rule 11)

NOTICE FOR REMOVAL OF unauthorized OCCUPATION

[Under sub-section (2) of section 26 of the Control of National Highways (Land and Traffic) Act, 2002]

Whereas Ion periodical inspection of the Highway land on the information received by me, am satisfied that an unauthorized occupation has taken place on the Highway comprised of area (specify area) situated at K.M.....of N.H. No(indicate location sufficient to identify area) and such unauthorized occupation has been caused by you/you are responsible for such unauthorized occupation;

Therefore, you(name and address of person to whom notice is to be issued) take notice that you are hereby required to remove such unauthorized occupation within seven days from the date on which this notice is served on you. You may make representation within three days from the date on which this notice is served on you to(indicate the designation and address of the officer to whom representation is to be made) and such representation, if made, shall be heard and (indicate the date and place of hearing) atand be aware of the notice that failure to comply with this notice shall render you liable to penalty summary eviction from the aforementioned Highway land under sub-section (6) of section 26 of the Control of National Highways (Land and Traffic) Act, 2002 (

13 of 2003

).

Issued under my hand and seal aton.....day of.....20.....

.....

Signature of Highway Administration or Officer authorized

Seal

Place.....

State/Union territory of

IV

(See rule 13)

BILL FOR RECOVERY OF COST OF REMOVAL OF unauthorized OCCUPATION AND FINE IMPOSED

[To be served under sub-section (2) of section 27 of the Control of National Highways (Land and Traffic) Act, 2002]

1. Name of person to whom the Bill is to be served

2. Father's name

3. Address (with telephone No.)

4. Location of unauthorized occupation with

N.H. No. and kilometrage

5. Expenditure incurred (in rupees) in removing unauthorized occupation/in making construction including alteration of construction/ in repairing damage

Additional charge

Fine imposed

Total

.....

Signature of the officer issuing the bill

Seal

Place

Date

State/Union Territory of.....

V

(See rule 14)

FORM OF APPLICATION FOR SPECIFIC PERMISSION FOR ACCESS TO A HIGHWAY

[Under sub-section (2) of section 29 of the Control of National Highways (Land and Traffic) Act, 2002]

To,

The Highway Administration,

.....

State/Union Territory of

1. Name of applicant

2. Father's Name

3. Address of applicant (with telephone No.)

4. Highway No. and the point of access on Highway on which the permission for access is sought for

5. Purpose of such permission

6. The means of access to which the permission sought for relates

7. Grounds for such permission which applicant likes to mention

From To.....

8. Period for which the permission is required

9. Particulars of fee paid

.....

Signature of the applicant

Place.....

Date.....

VI

(See rule 16)

LICENCE FOR ACCESS TO HIGHWAY

[Under sub-section (3) of section 29 of the Control of National Highways (Land and Traffic) Act, 2002]

State/Union Territory of

1. Name of the person to whom the license is issued

2. Father's name

3. Address of such person (with telephone No.)

4. Purpose of specific permission

5. Brief description of Highway in respect of which the specific permission is given

(N.H. No. and kilometrage also to be indicated)

6. Means of access to which such permission relates

7. Period for which the license is valid

From To.....

8. Terms and conditions (if any)

.....

Name of Highway Authorities and signature and seal of the officer issuing the license

Place

Date

VII

(See rule 22)

APPLICATION FOR CONSTRUCTION, INSTALLATION, ETC., ON HIGHWAY LAND

[Under sub-section (2) for obtaining permission under sub-section (1) of section 38 of the Control of National Highways (Land and Traffic) Act, 2002]

To,

The Highway Administration,

.....

.....

State/Union territory of

1. Name of applicant

2. Father's name

3. Address

(with telephone No.)

4. Location and part of Highway to be occupied

(N.H. No. and K.M also to be indicated)

5. Purpose

6. Period of occupancy of Highway land

7. Method of execution of work

(Detailed drawing/map of the work to be attached)

8. Period of construction

From To.....

9. Method of restoration of such part of the Highway

.....

Signature of applicant

Place

Date

Related AI tags, queries and research notes

Translation